

**IN THE SUPREME COURT OF BANGLADESH
HIGH COURT DIVISION
(SPECIAL ORIGINAL JURISDICTION)**

Writ Petition No. 11883 of 2023

IN THE MATTER OF :

An application under Article 102 read with Article 44 of
the Constitution of the People's Republic of Bangladesh
-And-

IN THE MATTER OF :

Banichitra Pratisthan limited and another

..... Petitioners

-Versus-

Rajdhahi Unnayan Kartipakkha (RAJUK), represented
by its (Chairman, RAJUK) Bhaban, RAJUK Avenue,
Dilkusha, Dhaka and others

..... Respondents

Mr. Mostak Ahmed, Advocate with

Mr. Khondaker Nazmul Ahsan, Advocates

.....For the petitioners

Mr. Majedul Hasan Miajee, Advocate

.....for the respondent No.1

Mr. Sajid Ahammad Sami, Advocate

.....for the Respondent Nos.2-5.

Heard on : 06.12.2023, 07.12.2023
and Judgment On : 12.12.2023.

Present:

Mr. Justice Mustafa Zaman Islam

&

Mr. Justice Md. Atabullah

Mustafa Zaman Islam, J;

In this application under article 102 read with Article 44 of the
Constitution of People's Republic of Bangladesh, a Rule Nisi was issued
calling upon the respondents to show cause as to why the inaction of the
respondent Nos.2-5 in not disposing of the applications dated 31.07.2023
(Annexure-E and E-1) should not be declared to have been done without
lawful authority and is of no legal effect and why a direction should not be

given upon the respondents to allow the petitioners to demolish the Gulshan Shopping Center Complex situated at Gulshan-1, Dhaka and/or pass such other or further order or orders as to this Court may seem fit and proper.

The facts necessary for disposal of the Rule, in brief are:

The Rajdhahi Unnayan Kartipakkha (in short RAJUK), the respondent No.1 leased out the scheduled land to the instant petitioners executed a registered deed of Agreement being No. 27445 and registered irrevocable General Power of Attorney being No 27446 both dated 13.12.2006 in favour of the Shanta Properties Limited (Shanta Holding Limited) to reconstruct a multi storied commercial building over the land in question.

The respondent No.1, Rajuk leased out land containing by admeasurement 1(one) Bigha 1(one) Katha & 4.50 (four point five) Chatak thereon situated in the “ Gulshan model Town” within District Dhaka, Mouja- Formerly Bhola Shamair, now Gulshan R/A, P.S-Gulshan being Plot No. 14, of the lay out plan prepared by Dhaka Improvement Trust (in short DIT) now RAJUK, which is butted & bounded by- on the North: A.K. Khandaker Road, Gulshan South Avenue; On the South: DCC Market; on the East: Bir Uttam Mir Shawkat Road, Plot-43; On the west: Car Park, DCC Market and land containing by ad measurement 1(one) Bigha 15(fifteen) Katha 12(twelve) Chatak there on situated n the “Gulshan Model Town” within District Dhaka, Mouja-Formerly Bhola Shamair now Gulshan R/A, P.S. Gulshan being Plot Nos. 37, 41,43 of the lay out plan prepared by DIT now RAJUK, which is butted & Bounded by on the

North: A.K. Khandaker Road, Gulshan South Avenue; on the south: Road-11, Gulshan-01, On the East: Bir Uttam Mir Shawkat Road, On the west: Plot -14, Gulshan South C/A in favour of the instant petitioners through lease deed being nos. 20334 and 20336 both dated 02.12.75.

The instant petitioners are absolute owners of the said schedule properties measuring 2 bigha 16 katha and 16.5 chattak and building in question is situated upon the whole properties and there is no dispute regarding the ownerships of the said properties as yet. From 1975 till date, the instant petitioners are enjoying the said properties peacefully and without any hindrance. The respondent Nos. 2-5 allow the instant petitioners as well as constituted attorney to demolish the building in question, the lawful attorney of the petitioner will demolish the building question within 7(seven) days in its own cost and won't permit any individual or company to enter the periphery for any reason, other than to demolish it.

It is stated in this petition that the petitioners jointly constructed a two-storied building over the afore-mentioned land namely Gulshan shopping centre and later extended the building into six storied commercial building and afterwards, rented the shops to the various persons, accordingly, as per the terms and conditions of the lease deeds. It mentions that on 16.12.2003, fire broke out severely in the said building and consequently the said building was seriously damaged and many cracks were found on the said building and as a result, the said building became a vulnerable and risky one. The life of hundreds of innocent people working on the said building was under a serious threat. In the mean time, the shop

keepers through its association filed a writ petition being no. 2321 of 2007 against the actions of the writ respondents from evicting them from the market. After hearing, Rule was disposed of with observation by this court and it was noticed that fire broke at the time of construction causing serious damage and destruction to the building. It was also observed that the owners who are the lessee of RAJUK did not come to the court.

Later on, 06.03.2007, the RAJUK served a notice upon the petitioners, asking them to submit a copy of the plan to RAJUK. Getting such letter from the RAJUK, the petitioners informed the matter to the President and Secretary of the Gulshan Shopping Centre Marchant Welfare Association who sought some time to lease the shopping complex so that they can arrange alternative measures. On 12.03.2007, the authorized officer of the RAJUK issued another letter to the petitioners asking them to show cause as to why the unauthorized construction would not be demolished within 7 days. Per contra, the petitioners, then replied the said letter stating that the petitioners found no such plan of construction of the said building and they had no objection, if RAJUK take any legal steps as the building is damaged severely by the fire on 16.12.2003 and many cracks were found in many places of the said building and also requested the RAJUK to allow some time before demolition of that building so that the shop keepers can find out alternative accommodation in the meantime. Again, on 10.04.2007 the RAJUK issued another letter for demolition of the illegal construction. The said construction was without a plan and in violation of the building Rules of RAJUK. After a long time, considering the building is unauthorized and vulnerable, the RAJUK decided to

demolish the unauthorized portions of construction of various zones including Gulshan area by their office order dated 07.02.2016. Pursuant to that on Executive Magistrate of RAJUK visited the building on 29.02.2016 and found that the said building is unauthorized and vulnerable and may collapse at any time, who took various steps including gave an order to the Dhaka Electric supply company (in short DESCO) to cut off the Electricity line and to seal that portion of the building in question. Consequently, on the same date, one lineman of DESCO cut off the electric line of the building in question and also sealed that portion of the building.

In the premise, stated herein above, on 02.03.2016, the Managing Director of the petitioners submitted an application to the Chairman, RAJUK seeking help from RAJUK to demolish the said building as the petitioners are incapable to demolish such huge construction and also confirmed that they will bear any such cost occur such demolition by RAJUK, who did not take any step. The petitioners, no other alternative filed a writ petition being no. 2870 of 2016 challenging the failure of the respondents to take action against the unauthorized construction in the aid building which was disposed of with observation and in writ petition no. 2321 of 2007 also directed to demolish the unauthorized construction upon the said building in plot nos. 14, 37, 41 and 43 of Gulshan-1 namely Gulshan Shopping Centre and direction upon the respondents not to provide re-connection of electricity to the said market.

It is stated in its writ petition that a look at the number of writ petitions shows how many writ petitioners were filed by present petitioners and shop keepers of the market for re-connect the electricity but this court

issued only Rule Nisi, no ad-interim order was passed. Against that order the Hon'ble Judge in chamber was pleased to pass an interim order of status quo in respect of re-connection of electricity in building in question being Civil Miscellaneous Petition No. 361 of 2016 filed by the instant petitioners.

Per contra, shop keepers of the market made repeated request to DESCO for re-connection of the electricity, but no fruitful response from the authority. Mentioned that the shop keepers filed several writ petitions and civil petition for leave to appeals. The Hon'ble Appellate Division directed the instant petitioners that is landlords, that they can evict the shop keepers including petitioners subject to the payment of proper compensation, which will be equivalent to the present market price along with other directions.

Subsequently, the land owners preferred Civil Review petition no. 603-604 of 2016 and after hearing leave was granted on 23.10.2017. Accordingly, Civil Appeal no. 503 and 504 of 2017 has been registered before the Appellate Division. During pendency of the said Civil Appeal Nos. 503 and 504 of 2017, the instant petitioners as well as Shanta Holdings ltd. appointed Vivid Logistics Ltd represented by its Managing Director Md. Quamrul Huda to resolve all the long-standing disputes between the landlords and the shop owners. Pursuant to that to settle the disputes amicably that is the owners, developer and Dokan Malik Samity executed and registered a compromise agreement being no. 1158 dated 08.02.2021. By the said agreement, the owners and developers were

undertaken to make allotment of shops in newly constructed building to the shop keepers or in alternative to pay exit compensation of them.

Be that, the Fire service and Civil Defence Department issued a letter dated 11.06.2018 to the petitioners to demolish the building as soon as against that where, the instant petitioners filed an appeal before the secretary, Ministry of Home Affairs who rejected the same after hearing the petitioners on the ground that the said building is a 'un-usable' building. All on a sudden, the respondent no. 02, Dhaka North City Corporation issued a letter dated 20.08.2022 under the signature of Executive Magistrate to seal the building in question and taking necessary steps in this regard. Thereafter, the respondent no. 02. issued another letter dated 11.07.2023 appointed two Magistrates with police to seal the building in question on 13.07.2023.

Consequently, the shop owners already left their running shops and handed over the vacant spaces to the developer Shanta Holdings Ltd. in order to demolish the existing structure and to build new construction over the land in question as per the compromise agreement.

At last, on 31.07.2023 the Shata Holdings Ltd. filed two representations before the respondent nos. 3 and 4 for allowing them to demolish the said vulnerable building in question but the respondent nos. 3 and 4 did not give any response. As the said building vulnerable and risky and the tenants already left the building and Shanta Holding Ltd is in possession, therefore, there is no bar to demolish building in question. It is at this stage, the petitioners filed the instant writ petition and obtained the Rule and order of direction as aforesaid.

Mr. Mostaque Ahmed, the learned Advocate appearing with Mr. Khondaker Nazmul Ahsan, the learned Advocate for the petitioners after placing the petition and all the relevant annexures and materials on record submits that the landowners executed deed of agreement as well as power of attorney with Shanta Holdings Limited on 2006 for reconstructing a new, modern multi-storied commercial building, but till date could not start the construction work for various disputes, which is now resolved, therefore, the Shanta Holdings Limited is now ready to reconstruct the commercial building as soon as possible, but due to the non-co-operation of the respondent Nos. 4 and 5, the Shanta Holdings Limited is unable to start to demolish the building in question, therefore, the instant petitioners are required to be allowed to demolish the building in question and as such the failure of the respondent Nos. 2-5 to take action in pursuant to the letters dated 31.07.2023, thereby allowing the petitioner to demolish the Gulshan Shopping Centre Complex situated at Gulshan-1, Dhaka should be declared to have been done without lawful authority and is of no legal effect and direction should be given upon the respondent Nos.2-5 to allow the petitioner to demolish the Gulshan Shopping Centre Complex situated at Gulshan-1, Dhaka. He submits that the said building is vulnerable and risky and the tenant already left the building and the Shanta Holdings Limited is in possession, therefore, there is no bar to demolish the present vulnerable building in order to reconstruct a multi-storied commercial building and as such the failure of the respondent Nos. 2-5 to take action in pursuant to the letter dated 31.07.2023, thereby allowing the petitioner to demolish the

Gulshan Shopping Centre Complex situated at Gulshan-1, Dhaka should be declared to have been done without lawful authority.

On the other hand, Mr. Sajed Ahammad Sami, the learned Advocate on behalf of respondent nos. 2-5 by filing affidavit-in-opposition submits that in accordance with 17.1 and 17.2 of the third Schedule of Local Government (City Corporation) Act 2009, the Building Control Regulations relating to buildings, Gulshan Shopping Centre, Gulshan-1, is to be sealed by DNCC in the public interest, water and electricity letter were sent to the respective authorities for stopping/disconnection. Mr. Abdullah Al Baqi, Zonal Executive officer, Zone-3 and Executive Magistrate, DNCC, were engaged to seal the said building. The decision to cancel the trade license related to the operation of various hotels/shops/business establishments of Gulshan Shopping Center were taken by the DNCC. Accordingly to the order to maintain the status quo of this Court, DNCC decided to cancel the trade license and sealed Gulshan Shopping Center. He further submits that though the possession in question is given number of ongoing litigation, the Respondents are not in a position to determine and handing over the said plot to any entry or person. Further the Respondent Nos. 2-5 do not have necessary resources to dismantle the said risky building by themselves or rectify the same. Lastly, he submits that the respondent Nos. 2-5 shall abide by the judgment of this court.

Mr. Majedul Hasan Miaje, the learned Advocate on behalf of the Respondent No. 1, RAJUK has entered appearance by filing a Vokalotnama. He submits that the respondent no. 01, RAJUK supported

the submission of the petitioners and mentioned it as risky building and RAJUK has no objection to demolishing the building.

We have heard the learned Advocates both sides at length and considered their submissions carefully. We have also perused the petition, supplementary-in-affidavit and all the documents, Annexures, affidavit-in-opposition and other materials on record meticulously.

It is apparent that the only question for consideration of this court in the instant writ petition, whether the Dhaka North City Corporation is legally sealed the building in question.

This is the writ in the nature of mandamus. Direction has been sought by the petitioners company upon the respondents. Before parting with the case, we would like to observe that this case should be a pointer to all the stakeholders that keeping of unauthorized constructions never pays and is against the interest of the society at large. The law, rules, regulations and by laws are made by the Government, Corporation, RAJUK, or Development authorities taking in view the larger public interest of the society and it is the bounden duty of the citizens to obey and follow such law and Rules which are made for their own benefits.

It is a matter of practice that a court invokes the writ jurisdiction in cases where a legal wrong or a legal injury is caused. Unauthorized constructions are against public interest. They affect the environment and the rights of citizens to live in or businesses a planned building in question. Here, the respondent nos. 2-5 issued letter on 11.07.2023 appointed two Magistrate with police personnel to seal as per clause 17.1 and 17.02 of the

3rd schedule of local Government (City Corporation) Act, 2007 which runs as follows:-

17.1 কক্ L-fjÑ-lne-el eLV ®Lje Cjila Abhi Eqil Efl ÛÛjfa
®Lje eLRª dÄw-pj¾jªM AhÛÛju B-R, Abhi dÄepuj fsil pñihej
B-R hcmuj fDaEujje qu, Abhi ®Lje fDLj-l HCl©f Cjil-al ®Lje
hijp¾cil Abhi finÄÑhaÑ£ ®Lje Cjila Abhi Eqil hijp¾ci-cl hij
fbQjil£-cl SeÉ ehfeL hcmuj fDaEujje qu, aijqj qC-m L-fjÑ-lne
®ejfVn àij Eqi-a EeðfMa fD-ujSeEu hÉhÛÛj NËqZ Lfhijl
SeÉ Eš² Cjil-al jicmL-L hij cMmLjil-L e-cÑn e-a fijl-h, Hhw
kck HC e-cÑn fim-e ®Lje eifV qu aijqj qC-m L-fjÑ-lne
e-SC fD-ujSeEu fc-rf NËqZ Lf-l-a fijl-h Hhw Hacª-ÿ-nÉ
hÉfua AbÑ Cjil-al jicm-LI eLV qC-a ayijil Efl HC BC-el
Ad£-e B-ljfa LI eqpj-h Bcju-kjNE qC-hz

17.2 kck ®Lje Cjila ehfeL AhÛÛju bj-L, hij Eqi jjeªo hphj-pl
Aeªfkªš² qu, aijqj qC-m L-fjÑ-lne Eqil pçªe® ®jjaj-hL CjilaefV
®jlja ej Lij fñç¹ Eqi-a hphjp eefoÛ Lf-l-a fijl-hz

It is crystal clear the above rules that Dhaka North City Corporation has sealed this building by appointing two Executive Magistrate with police force for its nefarious purpose which is not covered by the law. It appears that our apex court directed the instant petitioners land owner that they can evict shop keepers including petitioners subject to payment of proper compensation, which will be equivalent to the present market price along with other direction in Civil petitioner for leave to appeal nos. 1059of 2016 and 2290 of 2016 by its judgment dated 16.08.2016. As per judgment of the apex court the owners, developer and Dokan Malik Samity

executed and registered a compromise agreement to that agreement, the owners and developer were under taken to make allotment of shops in newly constructed building to the shop keepers or in alternative to pay exit compensation to them.

Suffice it to say that, though the RAJUK tried several times to demolish the building in question but their various difficulties could not do the job. But the RAJUK, have no objection to demolish the Gulshan Market Building.

Be that, the Fire Service Civil Defence Department issued letter that Gulshan Market Building is not useable and the risky one and also not to re-connect electricity, so the building should be demolished as soon as possible. Despite, the direction of our apex court and continued efforts by the stake holders, the building in question could not be demolished.

Moreover, the petitioners have repeatedly asked Dhaka North City Corporation for demolishing the building but they are not any heed for public interest. The North City Corporation by remaining silent on receiving such approached, have failed to exercise their jurisdiction under the law and all citizens. In view of above, we are opinioned that, who are tax payers to the corporation, can bring such illegalities to the notice of instant writ petition and pray for a proper relief upon the corporation to discharge its duty in accordance with law. But, silence of the Dhaka North City Corporation amounts to long duration of such legal wrongs. It is the bounden duty of all to follow the laws and regulations without fail.

Mentioned here that an unauthorized construction destroys the concept of planned development and civic amenities of all citizen provided

by the public authorities. It is the duty of public authority to not only demolish such unauthorized constructions but also to impose a penalty on the wrong doers involved. The North City Corporation has miserably failed to perform their duties. Keeping in view, preserving the ecology and environment of the area and protecting the rights of the citizen, repeatedly cautioned the authorities concerned against arbitrary regularization of illegal construction should be careful.

We would like to say that the Dhaka North City Corporation exercising its power by way of mala-fide and destroy the very idea and concept of planned development of urban area.

In view of the aforesaid observations and discussions made hereinabove, we are constrained to hold that the Rule has substance.

In the result, the Rule is made absolute in part and the respondent Nos. 2-5 are directed to allow the petitioners to demolish unauthorized building in question at his own cost, through its duly authorized attorney holder Shanta Holdings Limited.

The respondents are directed to take steps forthwith for demolition of the said building at Plot Nos. 14, 37, 41 and 43(building in question) Gulshan Shopping Centre Market, Gulshan-1, Dhaka.

The respondent no. 02, the North City Corporation, Dhaka is also directed to do the needful in terms of the Rule in accordance with law at the earliest preferably within 30 days on the receipt of the judgment and order.

However, there is no order as to costs.

Communicate the Judgment and Order at once.

Md. Atabullah, J:

I agree.